

		The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>February 4, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
13	Reyes v. DMS Building Maintenance, Inc. 2019-01077939	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for preliminary approval of an \$715,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The definition of "Agreement" or "Settlement" or "Settlement Agreement" in paragraph 3 of the second amendment to the amended settlement agreement should include amendments to the settlement agreement. 2. In the March 19, 2026 order (ROA 316), the court stated that the "PAGA Claims" provision in paragraph 23 was overbroad to the extent it defines the aggrieved employees' PAGA release. Settlement Agreement ¶ 49. The court stated that releases for aggrieved employees other than plaintiff should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. The "PAGA Claims" provision in the second amendment to the amended settlement agreement remains overbroad. Paragraph 23 of the second amendment should be revised as stated in the March 19, 2026 order. The notice should also be revised accordingly. 3. In the March 19, 2026 order (ROA 316), the court stated that the "Released Claims" provision in paragraph 31 was overbroad. The court stated that the release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the

		lawsuit based on the facts alleged in the operative complaint. The "Released Claims" provision in the second amendment to the amended settlement agreement remains overbroad. Paragraph 31 of the second amendment should be revised as stated in the March 19, 2026 order. The notice should also be revised accordingly. 4. Paragraph 55(a) of the second amendment contradicts paragraph 4 of the second amendment. 5. Paragraph 55(a) of the second amendment contains two "Error! Reference source not found" messages that should be addressed. 6. The following phrase should be removed from the last sentence in paragraph 59 of second amendment: "To the extent the Workweek Dispute cannot be resolved amongst the Parties, the Court will make a final and binding determination of any unresolved dispute and." 7. In the March 19, 2026 order (ROA 316), the court stated that while it will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiffs' counsel should address in the supplemental filing whether any such unique circumstances exist here. Plaintiffs' counsel has not identified any unique circumstances. The court preliminarily finds attorneys' fees not to exceed \$214,500 reasonable in this case. 8. In its March 19, 2026 order, the court noted that plaintiffs' counsel seeks costs not to exceed \$40,000 and stated that counsel should provide an itemized list of costs incurred to date. The court stated that nonrecoverable items such as postage, mailing and legal research charges should not be included. Plaintiffs' counsel's itemized costs include FedEx and scanning charges, which are not recoverable. Supp. Hawkins Decl. (ROA 328) Ex. A. In addition, why is the requested not-to-exceed amount (\$40,000) so much higher than plaintiffs' counsel's incurred costs? 9. In the March 19, 2026 order, the court stated that while it will not determine the amount of any enhancement award for plaintiffs until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. The court stated that plaintiffs should address in the supplemental filing whether any such unique circumstances exist here. Plaintiffs have not identified any unique circumstances.
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14	Truelove v. Hardin Automotive 2021-01201227	Off calendar.
15 2:30 p.m.	Crisostomo v. Earthco Commercial Landscape 2024-01394751	<u>Attorneys Frontier Law Center's Motion to be Relieved as Counsel</u> Attorneys Frontier Law Center move to be relieved as counsel for plaintiff Julio Crisostomo. California Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the